

Andhra Pradesh Universities Act, 1991

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State of Andhra Pradesh - Act

Andhra Pradesh Universities Act, 1991

ANDHRA PRADESH

India

Andhra Pradesh Universities Act, 1991

Act 4 of 1991

Published on 29 September 1993

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Andhra Pradesh Universities Act, 1991

(Act

4 of 1991

)

Last Updated 15th October, 2019

Statement of Objects and Reasons. - At present there are six conventional Universities in the State, each governed by a separate enactment. These Universities are the Andhra University and Nagarjuna University in the Andhra Area of the State, Sri Venkateswara University and Sri Krishnadevaraya University in the Rayalaseema region, the Osmania University and the Kakatiya University in the Telangana area of the State. The provisions of the various Universities Acts governing the aforesaid Universities are substantially the same with minor variations here and there. Whenever there is a change in the policy of the Government and an amendment is to be effected, it is resulting in the amendment of all the

Six Universities Acts which is contributing to legislative duplication. Further if any new University is to be established with the same aims and objects, a separate enactment has to be passed. To maintain uniformity of law in respect of all the conventional Universities and to easily establish any conventional University under the same enactment, the Government have decided to enact a single law in place of Six Universities Acts and to bring all the aforesaid Six Universities under new law. Apart from the above aspect of uniformity in the law, the Government have also decided to democratise the functioning of the Universities by providing for elected element in the Executive Council (earlier called as the Executive Council) and in the Academic Senate. It is also proposed to enlarge the membership of the Academic Senate by drawing persons having rich experience in various fields in order to mould the Academic Senate into a highly enlightened body. This Bill seeks to give effect to the above decisions. Appended to L.A.Bill No.37 of 1990 published in A.P. Gazette Part-IV (Ext.) dated 11-10-1990. Received the assent of the Governor on the 21st January, 1991 published on the 22nd January, 1991 in the Andhra Pradesh Gazette Part IV-B (Ext.) Part No.91 at Pages 1 to 58.

An Act to amend and consolidate the laws relating to certain Universities in the State of Andhra Pradesh and for matters connected therewith and incidental thereto. Be it enacted by the Legislative Assembly of the State of Andhra Pradesh in the Forty-first Year of the Republic of India as follows

Chapter I

Preliminary

1.
Short title, extent and commencement.
 - (1)
This Act may be called the Andhra Pradesh Universities Act, 1991.
 - (2)
It extends to the whole of the State of Andhra Pradesh.
 - (3)
It shall come into force on such date as the Government may, by notification, appoint.

2. Definitions.

- In this Act, unless the context otherwise requires,-

- (1)
"affiliated college" means, a college within the University area affiliated to the University in accordance with the conditions prescribed;
- (2)
"aided college" means, a college other than a Government College which receives aid out of the State Government Funds;
- (3)
"academic year" means a period of twelve months commencing on the first day of July of the year or such other period of twelve months beginning on such date as the Executive Council may specify in respect of all the colleges under the control of the University or any particular college thereof;
- (4)
"autonomous college" means, a college on which the status of autonomy has been conferred by the University;
- (5)
"constituent college" means college located outside the University Campus and established or maintained by the University for providing courses of study qualifying students for admission to the examinations in accordance with Regulations prescribed; and includes a college so located and established or maintained by the University immediately before the commencement of this Act;
- (6)
"college" means, a college established and maintained by, or affiliated to, or recognised by the University;
- (7)
"Department" means, a University Department recognised as such by Statutes;
- (8)
"Director of Higher Education" includes a Joint Director in charge of Higher Education;
- (9)

"Government" means, the State Government of Andhra Pradesh;

(10)

"Head of Department" means, a teacher of the University responsible for the co-ordination of instruction, training and research in any Department of the University;

(11)

"hostel" means, unit of residence for students of the University maintained or recognised by the University in accordance with the conditions prescribed;

(12)

"Honours College" means, a University College, an affiliated college or constituent college in which provision is made for Honours or Post-Graduate courses of study leading upto the higher degrees of the University and accordance with the Regulations prescribed;

(13)

"Post-Graduate-Centre" means, a University College in which provision is made for Post-Graduate courses of study and which is declared as such by statutes;

(14)

"prescribed" means, prescribed by Statutes, Ordinances or Regulations;

(15)

"Principal" means, the head of a college;

(16)

"Professional college" means, a college established and maintained by the University or affiliated to the University for providing courses of study leading to the professional degrees of the University, in accordance with the Regulations prescribed;

(17)

"recognised college" or recognised institution' means, respectively a college or institution recognised by the University under conditions prescribed;

(18)

"registered graduate" means, a graduate registered under Section 35;

(19)

"schedule" means the schedule appended to this Act;

(20)

"Secretary to Government" includes a Joint Secretary to Government and a Deputy Secretary to Government;

(21)

"student" means, a person who is admitted to a college and is borne on the attendance register thereon until the end of the academic year;

(22)

"Teachers" means, Professors, Associate Professors and Assistant Professors in a college and such other persons giving instruction in a college as may be declared by the Statutes to be teachers;

(23)

"Teachers of the University" means, teachers appointed by the University to give instruction or guide research in the University and constituent colleges;

(24)

"University" means a University constituted or deemed to have been constituted under this Act;

(25)

"University area" means, the area indicated against each University specified in the Schedule;

(26)

"University campus" means the area comprised within the limits of the Headquarters of each University as notified by the State Government from time to time in the Andhra Pradesh Gazette;

(27)

"University College" means, a college located in the University campus which is established or maintained by the University and provides courses of study qualifying students for admission to University examinations, in accordance with the Regulations prescribed and includes a college so located, and established or maintained by the University

immediately before the commencement of this Act;

(28)

"University Professor" means, a person appointed as such by the University.

Chapter II

The Universities

3.

Establishment of Universities.

(1)

The Government may, by notification, establish a University and specify the name, area of operation and headquarters thereof and for this purpose it shall be competent for the Government to amend the Schedule so as to,-

(i)

include the University in the Schedule;

(ii)

specify the University area and the headquarters of the newly established university; and

(iii)

alter the University area of any other University.

(2)

Where a notification has been issued under sub-section (1), there shall, unless the notification is in the meantime rescinded, be introduced in the Legislative Assembly, as soon as may be but in any case during the next session of the Legislative Assembly following the date of the issue of the notification; a Bill on behalf of the Government, to give effect to the alteration, addition or cancellation, as the case may be, of the Schedule specified in the notification, and the notification shall cease to have effect when such Bill becomes law, whether with or without modifications, but without prejudice to the validity of anything previously done thereunder:

Provided that if the notification under sub-section (1) is issued when Legislative Assembly is in session, such a Bill shall be introduced in the Legislative Assembly during that session;

Provided further that where for any reason a Bill as aforesaid does not become law within six months from the date of its introduction in the Legislative Assembly, the notification shall cease to have effect on the expiration of the said period of six months.

(3)

A University shall be a residential, teaching and affiliating University, and shall consist of a Chancellor, a Vice-Chancellor, a Rector, an Executive Council and an Academic Senate. It shall be a body corporate having perpetual succession and a common seal and shall sue and be sued by the said Corporate name.

(4)

In all suits and other legal proceedings by or against the University the pleadings, shall be signed and verified by the Registrar and all processes in such suits and proceedings shall be issued to, and served on the Registrar.

4.

Reconstitution of the Universities.

- On and from the date of commencement of this Act,-

(i)

The Andhra University established under the Andhra University Act, 1925 (Act II of 1926).

(ii)

The Kakatiya University established under the Kakatiya University Act, 1976 (Act 44 of 1976).

(iii)

Sri Krishna Devaraya University established under the Sri Krishna Devaraya University Act, 1981 (Act 36 of 1981).

(iv)

The Nagarjuna University established under the Nagarjuna University Act, 1976 (Act 43 of 1976).

[Provided that on the date of commencement of the Andhra Pradesh Universities (Amendment) Act, 2004 the Nagarjuna University shall be renamed as Acharya Nagarjuna University for the Purposes of this Act.]

[Added by Act

No. 7 of 2004

, dated 12.8.2004.]

(v)

The Osmania University established under the Osmania University Act, 1959, (Act 9 of 1959) and,

(vi)

Sri Venkateswara University established under Sri Venkateswara University Act, 1954 (Act XIV of 1954). shall be deemed to have been established and incorporated under this Act and are hereby declared to be Universities by the aforesaid names, and the respective University areas and Headquarters thereof shall be as specified in Columns (3) and (4) of the Schedule.

5.

Powers, functions and objects of the Universities.

- Every University established under this Act shall have the following powers, functions and objects, namely:-

(1)

to provide for instruction and training in such branches of learning as it may think fit;

(2)

to make provision for research extension programme and for the advancement and dissemination of knowledge;

(3)

to confer degrees and other academic distinctions on persons who have carried on research under conditions prescribed;

(4)

to confer honorary degrees or other academic distinctions on approved persons under conditions prescribed;

(5)

to create posts of Professors, Associate Professors, Assistant Professors and any other teaching posts required by the University and to appoint persons therefor;

(6)

to create administrative, ministerial and other posts required by the University;

(7)

to acquire and hold property, both movable and immovable, to lease, sell or otherwise transfer any movable or immovable property which may have become vested in or may have been acquired by it, for the purposes of the University and to contract and do all other things necessary for or incidental to the purposes of the University;

(8)

to institute, take-over and maintain colleges and hostels;

(9)

to establish, maintain and manage or to affiliate Honours Colleges, Autonomous Colleges or Post-Graduate Centres in any part of the University area outside the University Campus;

(10)

to confer autonomy on affiliated Colleges or Post-Graduate Centres in any part of the University area outside the University Campus;

(11)

to transfer any or all the colleges or institutions maintained by the University to the administrative control of the Government on such conditions as it may determine;

(12)

to erect, equip and maintain laboratories, libraries and museums;

(13)

to affiliate or recognise colleges and institutions and to withdraw such affiliation or recognition;

(14)

to inspect affiliated and recognised colleges and institutions and to take measures to ensure that proper standards of instructions are maintained in them;

(15)

to make grants from the funds of the University to affiliated and recognised colleges and institutions;

(16)

to establish, maintain and manage research departments and institutions;

(17)

to make special provision for the spread of higher education among educationally backward classes of citizens;
(18)

to make special provision for colleges and institutions or women students;
(19)

to establish research institutions in any part of the University area whether within or outside the University campus;
(20)

to fix fees and to demand and receive such fees and other charges as may be prescribed;
(21)

to make grants from the funds of the University for the maintenance of the National Cadet Corps;
(22)

to institute and manage,-

(i)
a Department of Publications;

(ii)
a University Press;

(iii)
an Employment Bureau;

(iv)
an Information Bureau;

(v)
Boards of University Extension;

(vi)
Students Unions, University Sports and Athletic Clubs; and other similar bodies and associations.

(23)
to co-operate with other Universities, education institutions and authorities in such manner and for such purposes as the University may determine;

(24)
generally to do all such other acts and things whether incidental to the powers aforesaid or not, as may be necessary or desirable to further the objects of the University as a residential, teaching and affiliating University, to cultivate and promote arts, fine arts, sciences, professional studies, technology and other branches of learning and to promote the interests of its students;

(25)
to supervise and control the conduct and discipline of the students of the University and its a affiliated and recognised colleges and institutions, and to make arrangements promoting their health and general welfare.

6.
Admission of educational institutions or colleges.

(1)
No college or institution outside the University area shall form part of, or be affiliated to or recognised by or be admitted to the privileges of the University:

Provided that the colleges and institutions in the territories specified in Clause (b) of sub-section (1) of Section 8 of the States Reorganisation Act, 1956, (Central Act 37 of 1956), which formed part of the State of Hyderabad as it existed immediately before the 1st November, 1956, shall continue to be affiliated to or be recognised by the Osmania University, until such time as that University may determine;

Provided further that the institution of research and higher learning outside the concerned University area may be recognised in the manner prescribed by the Statutes.

(2)
No college or institution within the concerned University area shall, after the commencement of this Act, form part of, or be affiliated to, or be recognised by, or seek admission to any privileges of any other University: Provided that nothing contained in this sub-section shall apply to any such college or institution within the concerned University area and which formed part of, or was, affiliated to, recognised by, any other University prior to such commencement.

(3)

Every college or institution which was affiliated to associated with or recognised or maintained by any of the Universities in the Schedule as the commencement of this Act shall continue to be affiliated to or associated with or recognised or maintained by that University.

6A.

[Special provision for the transfer of certain institutions.

[Inserted by Act No. 19 of 1993, dated 29.9.1993.]

(1)

Notwithstanding anything in this Act, every college or institution which was affiliated to or associated with r recognised or maintained by any of the University in the Schedule at the commencement of this Act and which has on such commencement gone into the University area of a different University shall on and from the commencement of the Andhra Pradesh Universities (Second Amendment) Act, 1993, stand transferred to the University in whose area such college or institution in located and shall hereafter be deemed to have been affiliated to or associated with or recognised by such Univrsity to which it is transferred and shall be maintained by such University.

(2)

On and from the date of transfer of the cololege or institution under sub-section (1), the staff working in such college or institution shall be given an option either to remain in the service of the University to which the said college or institution belonged prior to the commencement of the Andhra Pradesh Universities (Second Amendment) Act, 1993 or to go into service of the University to which the college or institution is transferred, in such manner and subject to such conditions as may be prescribed by rules made by the Government in this behalf and where the option exercised becomes final, the person concerned shall stand transferred to the service of the University he opted and it shall be competent for the Executive Council of such University to pass such orders as it deems fit in regard to the seniority, promotions and such other conditions of service of such transferred staff;

Provided that the service rendered by such staff in the University to which the college or institution belonged prior to such transfer shall be counted for all purposes as service in the University to which they opt.]

7.

University open to all persons.

- No person shall be excluded from holding any office in the University or from membership of any of the authorities of the University or from admission to any degree, diploma or other distinction or course of study, on grounds only of religion, race, caste, sex, place of birth or any of them, and it shall not adopt or impose on any person any test whatsoever of religious belief or profession in order to entitle him to be admitted thereto as a teacher or student or to hold any office therein or to qualify for any degree, diploma or other distinction or to enjoy or exercise any of the privileges of the University:

Provided that,

(1)

the University may maintain, affiliate or recognise any college or institution, intended exclusively for women, either for their education, or for their residence;

(2)

the University may reserve seats in any University college or constituent college for women or members of educationally backward classes, or allot seats on such regional basis of the concerned University area, as may be declared by the University;

(3)

the Government may reserve seats in colleges under their management for women or members if educationally backward classes or allot seats on such regional basis of the State as may be declared by the Government.

8.

Inspection and inquiry.

(1)

The Government shall have the right to cause an inspection to be made by such person or persons as it may direct of the University, its buildings, laboratories, libraries, museums, workshops and equipment and of any institutions maintained by or affiliated to the University and also to cause an inquiry to be made, into the teaching and other work conducted or done by the University in respect of any matter connected with the University. The Government shall in every case give notice to the University of its intention to cause such inspection or inquiry to be made and the University

shall be entitled to be represented thereat.

(2)

The Government shall forward to the Vice-Chancellor a copy of the inspection report for obtaining the views of the Executive Council and on receipt of such views, the Government may tender such advice as they consider necessary and fix a time limit for action to be taken by the University.

(3)

The Executive Council shall, within such time as the Government may fix report to them through the Vice-Chancellor the action which has been taken or is proposed to be taken on the advice tendered by them.

(4)

The Government may, where action has not been taken by the University to their satisfaction, within the time fixed and after considering any explanation furnished or representation made by the Executive Council issue such directions as they may think fit and the University shall comply with such directions.

Chapter III

Officers of the University

9.

Officers of the University.

- The following shall be the Officers of the University:-

(i)

The Chancellor;

(ii)

The Vice-Chancellor;

(iii)

The Rector;

(iv)

The Principals/Dean of the University Colleges;

(v)

The Registrar;

(vi)

The Finance Officers; and

(vii)

Such other persons as the Statutes may declare to be officers of the University.

10.

Chancellor.

- The Governor of the Andhra Pradesh shall be the Chancellor of every University established or deemed to have been established under this Act. He shall by virtue of his office, be the Head of the University and shall, when present, preside at convocations of the University. He shall exercise such other powers and perform such other duties as may be conferred on or vested in him by or under the provisions of this Act. The Chancellor may, by order in writing annul any proceeding to the University, which is not in conformity with this Act, the Statutes or the Ordinances:

Provided that before making any such order he shall give a notice calling upon the University to show cause why such an order should not be made and if any cause is shown within the time specified therefor in the said notice, shall consider the same.

11.

Vice-Chancellor.

(1)

The Government shall constitute a Search Committee consisting of:

(i)

a nominee of the Executive Council;

(ii)

a nominee of the University Grants Commission; and

(iii)

a nominee of the State Government. The Search Committee shall submit a panel of three persons to the Government in

alphabetical order from among whom the State Government shall recommend one person to the Chancellor for appointment as Vice-Chancellor and the Chancellor shall appoint such person as Vice-Chancellor:

Provided that it shall be competent for the Government to call for a fresh panel if they consider necessary and the Search Committee shall submit a fresh panel to the Government.

(2)

The Vice-Chancellor shall not be removed from his office except by an order of the Chancellor passed on the ground of wilful omission or refusal to carry out the provisions of this Act, or abuse of the powers vested in him and after due enquiry ordered by the Government, by the Lokayukta or by such person who is or has been a Judge of a High Court or the Supreme Court as may be appointed by the Chancellor in which the Vice-Chancellor shall have an opportunity of making his representation against such removal:

Provided that where the enquiry is conducted by a person who is or has been a Judge of High Court or the Supreme Court the report of such an enquiry shall be forwarded to the Government and the Chancellor shall act in accordance with the advice tendered by the Government on a consideration of the report while exercising his powers under this sub-section;

Provided further that where the Lokayukta enquires into an allegation against the Vice-Chancellor under the Andhra Pradesh Lokayukta and Upa-Lokayukta Act, 1983, then, notwithstanding anything contained in Section 12 of that Act, the Lokayukta shall submit the report to the Government and the Chancellor shall act in accordance with the advice tendered by the Government on a consideration of the report while exercising his powers under this sub-section.

(3)

The Vice-Chancellor shall be the Academic Head and the principal Executive Officer of the University and shall exercise general control over its affairs. He shall be a whole time officer of the University.

12.

Term of office etc. of Vice-Chancellor.

(1)

Subject to the provisions of sub-section (2) of Section 11, the Vice-Chancellor shall hold office for a term of three years from the date of his appointment and shall be eligible for reappointment to that office for another term of three years in the manner provided in sub-section (1) of Section 11.

(2)

The Vice-Chancellor shall be paid such pay and allowances as may, by order, be specified by the Government from time to time. He shall be provided with a furnished official accommodation for which he shall pay ten per cent of his salary towards rent.

(3)

When the Vice-Chancellor is unable to exercise his powers, perform his functions and discharge his duties owing to absence, illness or any other cause or when the office of Vice-Chancellor is vacant, it shall be competent for the State Government to appoint a person to be incharge Vice-Chancellor. The person so appointed as incharge Vice-Chancellor shall exercise the powers, perform the functions and discharge the duties of the Vice-Chancellor until the Vice-Chancellor assumes the office, or as the case may be, a new Vice-Chancellor is appointed in accordance with sub-section (1).

(4)

It shall be competent for the Chancellor to accept the resignation of the Vice-Chancellor.

(5)

When the post of the Vice-Chancellor falls permanently vacant, either by the resignation or otherwise, the vacancy shall be filled by the Chancellor by appointing another person as the Vice-Chancellor and the Vice-Chancellor so appointed shall hold office for a full term of three years.

13.

Powers and duties of the Vice-Chancellor.

(1)

The Vice-Chancellor shall, by virtue of his office be a member and Chairman of the Executive Council and of the Academic Senate and shall preside at the convocation of the University in the absence of the Chancellor.

(2)

He shall be entitled to be present at the address at any stage, any meeting of any Authority of University, but not to vote

thereat, unless he is member of the authority concerned.

(3)

He shall have the power to convene meetings of the Executive Council and the Academic Senate.

(4)

It shall be his duty to see that the provisions of this Act, the Statutes, the Ordinances and Regulations are duly observed and he may exercise all powers necessary for this purpose.

(5)

He shall have power to interpret the provisions of this Act, the Statutes, the Ordinances and the Regulations. Any person or authority aggrieved may, within such time as may be prescribed by an Ordinance, appeal to the Chancellor:

Provided that, -

(i)

if such interpretation was given at a meeting of the Executive Council, the appeal shall lie to the Chancellor direct;

(ii)

if such interpretation was given otherwise than at a meeting of the Executive Council, the appeal shall be forwarded to the Chancellor through the Executive Council.

(6)

He shall give effect to the decision of the Authorities of the University taken in accordance with the powers conferred by or under this Act.

(7)

He shall have such other powers as may be prescribed.

(8)

(a)

When, with regard to any matter in which any officer or authority may take action, the Vice-Chancellor considers immediate action desirable, he may subject to the general control of the Chancellor take such action as may be necessary but shall, as soon as may be, report the action taken to the officer or authority concerned.

(b)

An appeal shall lie to the Executive Council against any action taken by the Vice-Chancellor under Clause (a) affecting any person in the service of the University, at the instance of such person. Such appeal shall be filed within thirty days from the day on which such person has notice of the action taken.

14.

The Rector.

- There shall be a Rector who shall be appointed by the Executive Council on the recommendations of the Vice-Chancellor in such manner and on such terms and conditions as may be prescribed by the Statutes from among the senior professors. He shall exercise such powers and perform such duties as may be prescribed by the Statutes.

15.

The Registrar.

(1)

The Registrar shall be a wholetime paid officer of the University appointed by the Executive Council for a term of three years or less and on such terms and conditions as may be prescribed by the Statutes, provided that he shall not continue in that office for more than six years.

(2)

The Registrar shall act as the Secretary of the Executive Council and Academic Senate. He shall exercise such powers and perform such duties as may be prescribed.

(3)

The Executive Council may transfer the Registrar to a suitable position even before the completion of the term provided he is shown a position in the University with the same emoluments.

16.

The Finance Officer.

(1)

The Finance Officer shall be a wholetime officer of the University appointed by the University from out of a panel of three officers to be obtained from the Government in the Education Department on such terms and conditions as may be

prescribed by the rules made by the Government in this behalf. He shall be the employee of the Government and the salary, allowances, pension and other remuneration shall be paid in the first instance out of the Consolidated Fund of the State and later recovered from the University.

(2)

He shall maintain the accounts of the University and also advise the University on all matters relating to income and expenditure.

(3)

He shall be present at the meetings of the Finance Committee and participate in the discussions but shall not be entitled to vote.

Chapter IV

Authorities of the University

17.

Authorities.

- The following shall be the authorities of the University, namely:-

(i)

The Executive Council;

(ii)

The Academic Senate;

(iii)

The Faculties;

(iv)

The Boards of Studies; and

(v)

Such other bodies, as the Statutes may declare to be Authorities of the University.

The Executive Council

18.

Executive Council.

(1)

The Executive Council shall consist of the following persons, namely: Class I--Ex-officio Members:

(i)

the Vice-Chancellor;

(ii)

the Rector;

(iii)

the Secretary to Government in the Education Department or an Officer in the Education Department nominated by the Government;

(iv)

the Secretary to Government in the Finance and Planning (Finance Wing) Department or an officer in the Finance and Planning (Finance Wing) Department nominated by the Government;

(v)

the Director of Higher Education/the Commissioner of Collegiate Education:

Provided that in the case of Sri Venkateswara University, Tirupathi, the Executive Officer, Tirumala-Tirupathi Devasthanams shall also be the Ex-Officio Member.

(i)

one senior professor of the University Colleges to be nominated by the Government;

(ii)

one Principal of the University Colleges to be nominated by the Government;

(iii)

one Principal of affiliated Colleges to be nominated by the Government;

(iv)

one teacher from among the teachers of the University Colleges to be nominated by the Government;

(v)
one teacher from among the teachers of the affiliated Colleges to be nominated by the Government;

(vi)
four eminent persons representing industry, agriculture, trade, commerce, education, public life, legal profession, social work, etc., to be nominated by the Government.

(2)
Every member of the Executive Council other than ex-officio Member shall hold office during the pleasure of the Governor

(3)
The Executive Council shall meet atleast once in three months and may meet often if necessary.

(4)
Upon a requisition in writing signed by not less than one-third of the total number of members of the Executive Council, the Vice-Chancellor shall convene a meeting thereof on a date appointed by him which shall not be later than seven days from the date of receipt of requisition aforesaid.

(5)
In the absence of the Vice-Chancellor from any meeting of the Executive Councils the members present at the meeting shall choose one among themselves to preside over the meeting.

(6)
The quorum for a meeting of the Executive Council shall be one-third of the total number of members or four persons, whichever is higher.

19.
Powers and duties of the Executive Council.

- The Executive Council shall be the Executive Authority of the University and shall have power,-

(1)
to direct the form, custody and use of the common seal of the University;

(2)
to hold, control and administer the property and funds of the University;

(3)
to enter into, vary, carry out and cancel contracts on behalf of the University in the exercise of performance of the powers and duties assigned to it by this Act and the Statutes;

(4)
(a)
to accept on behalf of the University, endowments, bequests, donations and other transfer of property made to it;

(b)
to administer all funds placed at the disposal of the University for specific purposes;

(5)
subject to such Statutes as may be prescribed in this behalf,-

(i)
to appoint the teachers of the University below the rank of Assistant Professors;

(ii)
to appoint the teachers of the University and above the rank of Assistant Professors on the recommendations of the Selection Committee constituted for the purpose;

Provided that the Executive Council may invite any person of high academic distinction and professional attainments to accept post of Professor in the University and appoint him to that post;

Provided further that if the Executive Council rejects the selections made by the Selection Committee, the matter shall be referred by the University to the State Government whose decision thereon shall be final;

(iii)
to fix emoluments of the teachers of the University and define their duties and conditions of service;

(6)
to suspend, remove or dismiss teachers of the University subject to such Ordinances as may be made in this, behalf;

(7)

to appoint, dismiss, remove or suspend any member of the non-teaching staff of the University;

(8)

to fix the emoluments of the employees of the University and define their duties and the conditions of their service;

(9)

to award fellowships, travelling fellowships, scholarships, exhibitions, bursaries, studentships, medals and prizes in accordance with such rules as may be made in this behalf;

(10)

to appoint examiners in consultation with the Board of studies and to fix their fees;

(11)

to conduct University Examinations and to approve and publish the results thereof;

(12)

to prescribe the fees to be charged for admission to the examinations, degrees, diplomas and oriental titles of the University;

(13)

to charge and collect such tuition and other fees as may be prescribed by the Ordinances for admission to courses to study in the colleges and institutions of the University;

(14)

to manage and control all colleges, hostels, libraries, laboratories, museums and the like, instituted and maintained by the University;

(15)

to establish, manage and control a Department of Publications, a University Press, an employment Bureau, Students' Unions, University Extension Boards, University Athletic Clubs and other similar associations;

(16)

to affiliate colleges to the University as Honours Degree, Oriental or Professional Colleges under conditions prescribed by the Academic Senate and to suspend or withdraw such affiliation after consultation with the Academic Senate;

(17)

to confer in consultation with the Academic Senate either suo motu or on a representation received in this behalf from a college, autonomy on any college in the University area and to likewise withdraw such autonomy;

(18)

to grant recognition to the institution and oriental colleges under conditions prescribed by Statutes after consultation with the Academic Senate and to suspend or withdraw such recognition after consultation with the Academic Senate;

(19)

to direct the inspection of affiliated or recognised colleges and institutions;

(20)

to call for reports and returns and other information from affiliated or recognised colleges and institutions;

(21)

to recognise hostels not maintained by the University and to suspend or withdraw such recognition therefrom;

(22)

to supervise and control the residence and discipline of the students of the University and make arrangements for promoting their health and well-being;

(23)

to recommend to the Chancellor on the motion of the Vice-Chancellor the conferment of honorary degrees and other academic distinctions;

(24)

to make, amend or repeal Regulations, Statutes and Ordinances;

(25)

to delegate any of its powers to the Vice-Chancellor or to a committee from among its own members or to any employee of University;

(26)

to regulate and determine all matters concerning the administration of the University in accordance with the Statutes, the Ordinances and the Regulations and to exercise such other powers or duties as may be conferred or imposed by this

Act;

(27)

to establish and maintain University Colleges;

(28)

to provide for research and advancement and dissemination of knowledge;

(29)

to create posts of professors, Associate Professors, Assistant Professors and other teaching posts required by the University;

(30)

to establish, equip, and maintain the University laboratories and libraries;

(31)

to control, in general, all colleges in the University area in the manner prescribed by Statutes;

(32)

to confer degrees and other academic distinctions on persons who have pursued approved courses of study in a University college or an affiliated college or Oriental college, unless exempted therefrom in the manner prescribed by the Regulations and shall have passed the prescribed examination of the University or shall have carried on research under conditions prescribed;

(33)

to confer honorary degrees or distinctions on approved persons in manner prescribed;

(34)

to provide for allowances, travelling allowances, scholarships, exhibition, bursaries, studentships, medals and prizes;

(35)

to provide for lectures and instruction to persons not being students of the University and to grant diplomas to them;

(36)

to establish and maintain hostels;

(37)

to prescribe the fees to be charged for the affiliation and recognition of colleges;

(38)

to prepare the annual reports and annual accounts and the financial estimates of the University for submission to the Academic Senate;

(39)

to enter into any agreement with the Government or with the private managements for assuming the management of any institution and taking-over its properties and liabilities or for any other purpose not repugnant to the provisions of the Act;

(40)

to exercise all the powers of the University not otherwise provided for, and all powers requisite to give effect to the provisions of the Act.

20.

Annual Accounts.

- The Executive Council shall prepare during each financial year the annual accounts of the University of the preceding financial year and submit them to such audit as the Government may direct before the end of the financial year. The accounts so audited shall be published in the Andhra Pradesh Gazette and copies thereof together with copies of audit report shall be submitted to the Academic Senate not later than two years from the end of the financial year to which the accounts relate and also to the Government.

21.

Financial estimates.

- The Executive Council shall prepare before such date as may be prescribed by the Statutes, the financial estimates for the ensuing financial year along with annual accounts whether audited or not of the preceding financial year and submit the same to the Academic Senate. These estimates shall be considered by the Academic Senate at its annual meeting and the resolutions of the Academic Senate thereon shall be submitted to the Government for information.

22.

Annual Report.

- The Executive Council shall prepare an annual report of the University and send it to the Academic Senate on or before such date as may be prescribed by the Statutes. The report shall be considered by the Academic Senate at its next annual meeting. A copy of the report with a copy of the resolution therein, if any, of the Academic Senate shall be submitted to the State Government for information.

23.

Power to incur unforeseen expenditure.

- The Executive Council may, for reasons to be recorded in writing incur any expenditure for which no provision has been made in the budget or which is in excess of the amount provided in the budget, but report of expenditure incurred shall be made to the Academic Senate at its next meeting for approval.

24.

Academic Senate.

- The Academic Senate shall consist of the following, persons namely: CLASS - I. EJC-OPtICIO MEMBERS

(1)

all members of the Board of Management.

(2)

all Deans of Faculties;

(3)

all Ex-Vice-Chancellors of the University concerned;

(4)

Vice-Director of Technical Education;

(5)

the Director of Medical Education;

(6)

the Director of School Education;

(7)

the Director of Adult Education;

(8)

the Director of Intermediate Education;

(9)

the Chairman of the Andhra Pradesh State Council of Higher Education or in his absence the Vice-Chairman thereof ;

(10)

the Director, Telugu Academy;

(11)

all members of the University Planning and Monitoring Board.

CLASS - II.

Life Members

(1)

All donors who are earlier members of the erstwhile Senate;

(2)

all persons who donate an, amount of not less than rupees five lakhs to the University.

CLASS - III

Members To Be Nominated By The Government

(1)

one third or- twenty Professors whichever is less, of the University colleges, by rotation;

(2)

one third or twenty Principals whichever is less of the affiliated colleges in the University area by rotation ;

(3)

seven persons of whom two shall belong to the members of the Scheduled Castes and one shall belong to Scheduled Tribes., two shall belong to Backward Classes and two shall be women;

(4)

two Principals of Junior Colleges or Higher Secondary Schools in the University area;

(5)

ten persons to represent professionals belonging to the fields of medicine, engineering, business, law, banking etc.

(6)

two persons belonging to the non-teaching staff employed in the colleges of the University area;

(7)

six students to be nominated on merit basis of whom two shall be under graduates, two shall be post-graduates, one shall be a research scholar and one student of a professional college;

(8)

one Librarian of any college in the University area;

(9)

one Physical Director of any college in the University area;

(10)

two persons from Research Laboratories or Institutions of the Government of India in the University area;

(11)

one Professor from each of the other Universities in the State;

(12)

two representatives of the managements of private colleges in the University area.

CLASS - IV

Elected Members :

(1)

Ten teachers to be elected from among the teachers of the University colleges from among themselves according to the principle of proportional representation by means of single transferable vote and according to procedure prescribed by the Statutes;

(2)

Ten Teachers to be elected from among the teachers' of the affiliated colleges in the University area from among themselves according to the principle of proportional representation by means of single transferable vote and according to procedure prescribed by the Statutes;

(3)

Ten Members of the Legislative Assembly to be elected from among the Members of the Legislative Assembly of whom two each shall belong to Scheduled Castes/ Backward Classes and One Scheduled Tribe from among themselves according to the principle of proportional representation by means of single transferable vote and according to procedure prescribed by the Statutes.

25.

Powers of the Academic Senate.

(1)

The Academic Senate shall have the authority to provide instruction and training in such branches of learning as it things fit. It shall exercise general supervision over the Academic Policies of the University and provide leadership for raising the standard and quality of education and research.

(2)

In particular the Academic Senate shall have power:-

(a)

to consider the annual report and budget estimates prepared by the Board of Studies;

(b)

to advice the Board of Studies on all academic matters, including the control and management of the libraries;

(c)

to constitute the several faculties as may be prescribed;

(d)

to formulate, modify or revise schemes for the constitution or reconstitution of departments, of teaching;

(e)

to make recommendations to the Executive Council for the creation of posts of professors, Associate Professors,

Assistant Professors and other teaching posts and in regard to the duties and emoluments thereof;

- (f) to make recommendations of the Executive Council for the recognition of teachers qualified to give instruction in affiliated and oriental colleges;
- (g) to make recommendation to the Executive Council for the selection of a college in the University area on a reference made thereof by the Executive Council for the conferment of autonomy on such college or for withdrawal of autonomy already conferred;
- (h) to make regulations for the encouragement of cooperation and reciprocity among colleges with a view to promoting acting academic life;
- (i) to make regulations regarding the admission of students to the University;
- (j) to make regulations relating to courses, examinations and the conditions on which students shall be admitted to examinations for the degrees of the University;
- (k) to decide the conditions under which exemptions relating to the admission of students to examinations may be given;
- (l) to appoint Standing Committees and to delegate to them or the Vice-Chancellor, powers to execute any of the functions assigned by this Act;
- (m) to make regulations for the use of Telugu as medium of instruction and examination.

26.

The Faculties.

- (1) The University shall have such faculties as may be prescribed by Statutes.
- (2) Each faculty shall consist of such departments of teaching as may be prescribed by Statutes.
- (3) The constitution and functions of the faculties shall be prescribed by Statutes.
- (4) (a) There shall be Dean/Chairman for each faculty who shall be appointed by the Executive Council from among the members of the faculty concerned on the recommendation of the Vice-Chancellor;
- (b) The terms and conditions of the office of Dean/Chairman shall be prescribed by Ordinances.

27.

The Board of Studies.

- A separate Board of Studies shall be attached to each department of teaching. The constitution and functions of the Boards of Studies shall be prescribed by ordinances. There shall be representation for students on the Boards of Studies.

28.

Planning and Monitoring Board.

- (1) There shall be a Planning and Monitoring Board consisting of,-
 - (i) the Vice-Chancellor (Chairman);
 - (ii) four from among the Principals of University and Professional Colleges, Deans/Chairman of Faculties nominated by the Vice-Chancellor;

(iii)

two educationists nominated by the Government;

(iv)

two nominees of the University Grants Commission.

(2)

The Board shall be the principal planning and reviewing body and it shall also arrange for periodical monitoring of the development programmes and of teaching and research in the University.

Chapter V

General

29.

Disqualification for Membership.

- No person shall be qualified for nomination as a member of any of Authorities of the University, if he,-

(a)

is, on the date of nomination, of unsound mind, a minor, a deaf-mute or is suffering from leprosy; or

(b)

applied to be adjudicated as an insolvent or is an undischarged insolvent; or

(c)

has been convicted and sentenced by a criminal court to imprisonment for a period of more than one year for an offence involving moral turpitude unless such sentence has been reversed or the offence has been pardoned or a period of five years has elapsed from the date of the expiration of the sentence.

30.

Disputes as to constitution of University Authorities.

- Save as otherwise provided, if any question arises whether a person has been duly nominated, or is entitled to be a member of any authority of the University, the question shall be referred to the Chancellor, whose decision thereon shall be final.

31.

Constitution of Committees.

- All the Authorities of the University shall have power to appoint Committees. Such Committees, may unless there be some special provision to the contrary, consist of members of the authority concerned and of such other persons, if any, as the authority in each case may think fit.

32.

Proceedings of University Boards not invalidated by vacancies.

- No act or proceeding of any authority or other body of the University shall be deemed invalid by reason only of some defect in the constitution of the Authority or body or by reason of the existence of a vacancy or vacancies among members.

33.

Term of office of members of Executive Council and the Academic Senate, etc..

(1)

Save as otherwise provided, the Executive Council, the Finance Committee and the Academic Senate shall be reconstituted at or about the same time every three years and the members of these authorities shall except in the case of ex-officio members hold office as members thereof upto the date of next reconstitution:

Provided that no person other than ex-officio member, professor, Heads of Departments other than Professors, Deans/Chairman of Faculties and Principals shall be a member of Executive Council or the Academic Senate for more than two terms consecutively.

(2)

No member of an authority specified in sub-section (1) who is elected, appointed or nominated in his capacity as a member of a particular electorate or the holder of a particular office of appointment shall continue to be a member of such authority on his ceasing to be a member of the particular electorate or the holder of the particular office or appointment.

(3)

Where an elected, appointed or nominated member of an authority specified in sub-section (1) is appointed temporarily

to any of the offices by virtue of which he is entitled to be a member of that authority ex-officio, he shall, by notice in writing signed by him and communicated to the Vice-Chancellor within seven clear days from the date of his taking charge of his temporary appointment, choose whether he will continue to be member of that authority by virtue of his election, appointment or nomination, or whether he will vacate office as such member and become a member ex-officio by virtue of his temporary appointment, and the choice shall be final. On failure to make such choice he shall be deemed to have vacated his office as an elected, appointed or nominated member.

34.

Removal from membership of the University.

- The Academic Senate may on the recommendation of not less than two-thirds of the members of the Executive Council and by the votes of majority of the total membership of the Academic Senate and two-thirds of the members present and voting remove the name of any person from the register of graduates and remove any person from membership of any Authority of the University if he has been convicted by a court of law of what in the opinion of the Academic Senate is an offence involving moral turpitude or if he has been guilty of scandalous conduct, and for the same reasons may withdraw any degree or diploma conferred or granted by the University. The Academic Senate may also remove any person from the membership of any Authority of the University if he becomes of unsound mind or a deaf-mute or is suffering from leprosy or has applied to be, or is adjudicated as an insolvent.

35.

Registered Graduates.

- All graduates of the University and holders of such of the Oriental titles and diplomas as may be laid down by the State Government shall be entitled to have their names enrolled in the register of Registered Graduates and to enjoy all privileges of registration.

Chapter VI

Teaching and Admission of Students

36.

Attendance at recognised institutions.

(1)

No attendance at any institution other than a University, constituents, affiliated or recognised college or institution of the University shall qualify a candidate for admission to an examination of the University other than the entrance examination to the University.

(2)

The courses of study and curricula shall be those prescribed.

37.

Admission to University Courses.

(1)

No student shall be eligible for admission to a course of study qualifying for admission to a post matriculation University examination unless he has passed the examination prescribed as qualifying for admission to such course or an examination recognised by the Academic Senate as equivalent thereto and possess such other qualification, if any, as may be prescribed.

(2)

Every candidate for a University examination shall, unless exempted in accordance with the Ordinances and Regulations prescribed, be an enrolled member of a University, constituent or affiliated or recognised college or institution of the University.

38.

Recognition of degrees and diplomas.

- The University shall recognise every degree conferred or diploma granted by any other University in the State as equivalent to the corresponding degree or diploma conferred or granted by the University.

Chapter VII

Appointment of Teachers etc.

39.

Conditions of service.

(1)

Save as otherwise provided, every salaried officer and teacher of the University shall be appointed under a written contract, and the conditions of service relating to them shall, as far as possible be uniform except in respect of salaries payable to them.

(2)

The contract shall be lodged with the Registrar and a copy thereof shall be furnished to the officer or teacher concerned.

40.

Conditions of Service of Employees and Settlement of disputes.

(1)

Every employee shall be appointed under a written contract which shall be lodged with the Registrar or Dean a copy of which shall be furnished to the employee concerned.

(2)

Any dispute arising out of a contract between the University and any employee may be referred by the Vice-Chancellor to a grievance committee consisting of such members of the Executive Council as may be nominated by it.

41.

Procedure of appeal in disciplinary cases against students.

- Any student or candidate for an examination whose name has been removed from the rolls of the University by the order or resolution of the Vice-Chancellor, or by a Committee constituted by the Executive Council as the case may be, and who has been debarred from appearing at the examinations of the University for more than one year, may, within ten days of the date of communication of such orders or copy of such resolution to him, appeal to the Executive Council and the Executive Council may confirm, modify or reverse the decision of the Vice-Chancellor or the Committee as the case may be.

42.

Right of Appeal.

- Every employee or student of the University shall, notwithstanding anything contained in this Act, have a right to appeal within such time as may be prescribed by the Statutes to the Executive Council against the decision of any officer of the University affecting such employee or student and thereupon the Executive Council may confirm, modify or reverse the decision appealed against.

43.

Constitution of Selection Committee.

(1)

There shall be constituted a Selection Committee in regard to the appointment of professors, Associate Professors and Assistant Professors which shall consist of the following, namely,

(i)

the Vice-Chancellor;

(ii)

three experts from outside the University to be nominated by the Vice-Chancellor from out of panel prepared every year by the Board of Studies and approved by the Executive Council of whom at least two shall be present in the Selection Committee;

(iii)

Chairman of the Board of Studies concerned;

(iv)

Head of the Department;

Provided that no person shall participate in the meetings of the selection committee for any appointment if he or his near relative is candidate for that appointment;

Provided further that no teacher holding a post lower in rank than the one to which appointment is to be made, shall be a member of selection committee.

(2)

The Registrar shall be the Secretary of the Selection Committee.

(3)

Provision shall be made in the Statutes in respect of such matters as may be considered necessary and not provided for in sub-sections (1) and (2) in order to ensure fair selections.

43A.

[Constitution of Selection Committee for Career Advancement Scheme.

[Inserted by Act No. 18 of 2001, dated 22.4.2001.]

(1)

There shall be constituted a Selection Committee for the selection of Assistant Professors, Associate Professors and Professors of University colleges under the Career Advancement Scheme which shall consist of the following, namely :-

(i)

the Vice-Chancellor#Chairman;

(ii)

the Head of the concerned Department#Member;

(iii)

two experts on the subject from outside the University to be nominated by the Vice-Chancellor#Members;

(iv)

the Principal of the concerned University College#Member;

(v)

the Commissioner of Collegiate Education or his nominee;and #Member

(vi)

the Registrar#Secretary.

Provided that no person shall participate in the meetings of the Selection Committee if he or his near relative is a candidate for selection under the Career Advancement Scheme;

Provided further that no teacher holding a post lower in rank than the one to which appointment is to be made, shall be a member of Selection Committee.

(2)

The quorum shall be five members including the Chairman and two experts on the subject and the Commissioner of Collegiate Education or his nominee.

(3)

Provisions shall be made in the Statutes in respect of such matters as may be considered necessary and not provided for in sub-sections (1) and (2) in order to ensure fair selections.]

44.

Pension or Provident Fund.

- Where any pension, insurance or provident fund has been constituted by the University for the benefit of its officers, teachers or employees, the Government may declare that the provisions of the Provident Fund Act, 1925 shall apply to such fund as if it were a Government Provident Fund;

Provided that all persons who entered the Osmania University service before the 1st April, 1953, shall have the privilege of pension under the Hyderabad Government Rules and be entitled to draw their pension from Government Funds;

Provided further that the University shall have powers, in consultation with the Finance Committee, to invest the Provident Fund amount in such manner as it may determine.

Chapter VIII

University Funds Etc.

45.

General Fund.

- The University shall have a general fund to which shall be credited:-

(i)

its income including the fees and endowments;

(ii)

contribution or grants which may be made by the Government on such conditions as may impose; and

(iii)

other contributions or grants.

46.

Constitution of other Funds.

- The University shall have such other funds and maintain such accounts as the Executive Council may determine on

the recommendation of the Finance Committee.

47.

Finance Committee.

(1)

There shall be constituted a Finance Committee which shall be a sub-committee of the Executive Council with the following as members, namely:-

(a)

Vice-Chancellor (Chairman);

(b)

two members of the Executive Council nominated by it;

(c)

one member of the Executive Council to represent Banking or Accounting; The Finance Officer shall be the Secretary of the Finance Committee.

(2)

The Finance Committee shall have the following duties and powers, namely:-

(a)

to examine the annual accounts of the University and to advise the Executive Council thereon;

(b)

to examine the annual budget estimates and advise the Executive Council thereon;

(c)

to review the financial position of the University from time to time;

(d)

to make recommendations to the Executive Council on all matters relating to the finances of the University;

(e)

to make recommendations to the Executive Council on all proposals involving expenditure for which no provision has been made in the budget, or which involve expenditure in excess of the amount provided in the Budget.

48.

Borrowing of money.

- The University may accept funds from the Government of India, the State Government, the University Grants Commission, and borrow money from a Bank or a Corporation, for the purposes of the University.

49.

Certain restrictions in respect of financial matters.

- The University shall not, without the prior approval of the Government, divert earmarked funds for other purposes or upgrade any post or revise the scales of pay of its staff or implement any scheme which involves any matching contribution from the Government or create a post or posts resulting in a recurring liability on the Government either immediately or in future:

Provided that for the existing teaching purposes the Executive Council may authorise the creation and filling up of posts of teachers for a period not exceeding one year but any such post or posts shall not be continued or created afresh for any period beyond the said period of one year without the prior approval of the Government.

50.

Transfer of the Government institutions to the University.

- The Government may, at any time, after the commencement of this Act, transfer to the University the control and management of and of their institutions on such terms and conditions as may be deemed proper.

Chapter IX

Statutes, Ordinances and Regulations

51.

Statutes.

- Subject to the provisions of this Act, the Executive Council shall have power to make Statutes for all or any of the following matters, namely:-

(a)

the constitution, powers and duties of the Authorities of the University;

- (b)
the powers, duties and conditions of service of the officers of the University other than the Chancellor and Vice-Chancellor.
- (c)
the methods of nomination to the Authorities of the University and save as otherwise provided, the procedure, at meetings of such authorities including the quorum for the transaction of business by them;
- (d)
the condition of affiliation or recognition of colleges and institutions;
- (e)
the holding of convocations to confer degrees;
- (f)
the institution of pension, insurance or provident fund for the benefit of the officers, teachers and other employees of the University;
- (g)
the maintenance of a register of Registered Graduates;
- (h)
the institution and maintenance of University and constituent colleges, libraries, laboratories and hostels;
- (i)
the administration of endowments and the institution and conditions of award of fellowships, travelling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes; and
- (j)
all matters which by this Act may be prescribed by Statutes.

52.

Statutes how made.

- (1)
Every Statute passed by the Executive Council shall be submitted to the Chancellor who may give or withhold his assent thereto or refer it back to the Executive Council for reconsideration.

(2)

No Statute passed by the Executive Council shall be valid or shall come into force until assented to by the Chancellor.

53.

Ordinances.

- The Executive Council shall have power to make Ordinances subject to the provisions of this Act and the Statutes and such Ordinances may provide for all or any of the following matters, namely:-

- (a)
the levy of fee in the University and the constituent colleges;
- (b)
the fees to be charged for admission to the examinations, degrees and diplomas of the University;
- (c)
the conditions of residence of students to the University and the levy of fees for residence in hostels maintained by the University;
- (d)
the conditions of recognition of hostels not maintained by the University;
- (e)
the number, qualifications and emoluments of teachers of the University;
- (f)
the fees to be charged for courses of study given by the teachers of the University for lectures, for tutorial and supplementary instruction provided by the University, and for services rendered by the University Officers;
- (g)
the mode of appointment and duties of examiners;
- (h)
the conduct of examinations;

- (i)
the constitution and determination of the functions of the Boards of Studies;
- (j)
the discipline, health and welfare of students of the University;
- (k)
the constitution, powers and duties of University Extension Boards; and
- (l)
all matters which by this Act or by the Statutes may be provided for by the Ordinances.

54.

Ordinances how made.

(1)

In making Ordinances, the Executive Council shall consult the Academic Senate when such Ordinances affect the appointment and duties of examiners or the conditions of residence of students.

(2)

All Ordinances made by the Executive Council shall take effect from such date as may direct, but every Ordinance so made shall be submitted as soon as may be, after it is made, to the Chancellor.

55.

Regulations.

(1)

The Academic Senate shall have power to make Regulations subject to the provisions of this Act, and such Regulations may provide for all or any of the following matters, namely:-

(a)

the encouragement of co-operation and reciprocity among colleges;

(b)

the admission of students to the University or prescribing the examinations to be recognised as equivalent to University examinations;

(c)

the University courses and examinations and the conditions on which students shall be admitted to examinations for the degrees, diplomas, certificates and titles of the University;

(d)

the grant of exemptions.

(2)

All Regulations shall have effect from such date as the Academic Senate may direct.

Chapter X

Miscellaneous

56.

Power to remove difficulties.

- If any difficulty arises as to the constitution or reconstitution or appointment of any Authority or officer of the University or otherwise in first giving effect to the provisions of this Act, or at the time of establishing a new University, the Government, as occasion may require, may, by order, do anything which appears to them necessary for the purpose of removing the difficulty.

57.

Repeal and Savings.

(1)

The following Acts are hereby repealed:

(i)

the Andhra University Act, 1925; (Act 2 of 1926.)

(ii)

the Kakatiya University Act, 1976; (Act 44 of 1976.)

(iii)

Sri Krishna Devaraya University Act, 1981; (Act 36 of 1981.)

(iv)
the Nagarjuna University Act, 1976; (Act 43 of 1976.)

(v)
the Osmania University Act, 1959; (Act 9 of 1959.)

(vi)
Sri Venkateswara University Act, 1954; (Act 14 of 1954.)

(2)
Upon such repeal, the provisions of Sections 8 and 18 of the Andhra Pradesh General Clauses Act, 1891 (Act 1 of 1981) shall apply.

(3)
Notwithstanding such repeal,

(a)
the person holding office immediately before the commencement of this Act as Vice-Chancellor shall, on such commencement, be the Vice-Chancellor of the University concerned, and shall continue to hold the said office and to exercise all powers and to perform all duties conferred on the Vice-Chancellor by or under the provisions of this Act, until a Vice-Chancellor is appointed in accordance with the provisions of this Act;

(b)
the members of the Executive Council and Academic Senate constituted and functioning before the commencement of the Andhra Pradesh University Act, 1991 (hereinafter referred to as the said Act), shall continue to be such members and function only until the Executive Council and a new Academic Senate as the case may be, is reconstituted in accordance with the provisions of the said Act;

(c)
Upon the reconstitution of the Executive Council and Academic Senate, in accordance with the provisions of the said Act, the members of the Executive Council and the Academic Senate other than the life members thereof holding offices of such members immediately before such reconstitution shall cease to hold the offices of such members;

(d)
all colleges and institutions affiliated to or recognised by the University immediately before the commencement of this Act, shall be deemed to be affiliated or recognised as the case may be, under this Act;

(e)
all property, movable or immovable and all rights, interests whatever kind, powers and privileges of the University constituted immediately before the commencement of this Act, shall be transferred to and vest in the concerned University and shall be applied to the objects and purposes for which the University is constituted;

(f)
all benefactions accepted or received by the University constituted immediately before the commencement of this Act shall be deemed to have been accepted or received by the University under this Act and all the conditions on which such benefactions were accepted or received shall be deemed to be valid under this Act, notwithstanding that such conditions are inconsistent with the provisions of this Act;

(g)
all debts, liabilities and obligations incurred before the commencement of this Act and lawfully subsisting against the University shall be discharged and satisfied by concerned University;

(h)
all references in any enactments or other instruments issued under an enactment to the University constituted immediately before the commencement of this Act shall be construed as references to the concerned University deemed to have been constituted under this Act;

(i)
the appointment of the officers (other than the Vice- Chancellor), teachers and employees of the University constituted immediately before the commencement of this Act and subsisting immediately before the commencement of this Act shall be deemed to have been made under and for the purposes of this Act, and such Officers, teachers and employees shall continue to hold office, subject to the conditions governing the terms of their office or employment;

(j)
the appointments of all the examiners validly made immediately before the commencement of this Act and subsisting

immediately before the commencement of this Act shall be deemed to have been made under and for the purposes of this Act and such examiners shall continue to perform the same duties and exercise the same privileges until fresh appointments are made under the provisions of this Act;

(k)

all Statutes, Ordinances and Regulations, made under the relevant University Act in respect of the Universities specified in Section 4 shall, so far as such Statutes, Ordinances and Regulations, are not inconsistent with the provisions of this Act, continue to be in force and be deemed to have been made under the provisions of this Act until they are superseded or modified by Statutes, Ordinances and Regulations made under this Act.

Schedule 1

[See Sections 2 (19) and 4]

Universities and their Territorial Jurisdiction

Sl.No.

Name of the University

University Area

Headquarters

(1)

(2)

(3)

(4)

1.

Andhra University

Area comprising the

Districts of :

1. Srikakulam

2. Vijayanagaram

3. Visakhapatnam

4. West Godavari

5. East Godavari

Visakhapatnam

2.

Kakatiya University

Area comprising the

Districts of :

1. Warangal

2. Adilabad

3. Karimnagar

4. Khammam

Warangal

3.

Sri Krishnadevaraya University

Area comprising the

Districts of :

1. Anantapur

2. Kurnool

Anantapur

4.

Nagarjuna University

Area comprising the

Districts of :

1. Guntur

2. Prakasam

3. Krishna

Kaza-Number in Guntur District

5.

Osmania University

Area comprising the

Districts of :

1. Hyderabad
2. Ranga Reddy
3. Mahaboobnagar
4. Medak
5. Nalgonda
6. Nizamabad

Hyderabad and it may extend to any place within a contiguous area of ten miles around it.

6. [

[Added by Act No. 28 of 2006, dated 22.4.2006.]

Sri Venkateswara University

Area comprising the

Districts of :

1. Cuddapah
2. Chittoor
3. Nellore

Tirumala or Tirupathi, any place within a radius of ten miles around either of them.

7.

Telangana University

1.[***]

[Omitted 'Medak' by Act No. 2 of 2011, dated 6.1.2011.]

2. Nizamabad
3. Adilabad

Nizamabad and it may extend to any place within a radius of ten miles around it.

8.

Adikavi Nannaya University

1. East Godavari
2. West Godavari

Rajahmundry and it may extend to any place within a radius of ten miles around it.

9.

Yogi Vemana University

Kadapa

Kadapa and it may extend to any place within a radius of ten miles around it.]

10. [

[Added by Act No. 13 of 2007, dated 14.4.2007.]

[Mahatma Gandhi University]

[Substituted 'Nalgonda University' by Act No. 20 of 2008, dated 26.4.2008.]

Nalgonda

Nalgonda and it may extend to any place within a radius of ten miles around it.]

11. [

[Added by Act No. 29 of 2008, dated 21.9.2008.]

Sathavahana University

Karimnagar

Karimnagar and it may extend to any place within a radius of ten miles around it.]

12. [

[Added by Act No. 29 of 2008, dated 21.9.2008.]

Rayalaseema University

Kurnool

Kurnool and it may extend to any place within a radius of ten miles around it.]

13. [

[Added by Act No. 29 of 2008, dated 21.9.2008.]

Krishna University

Krishna

Machilipatnam and it may extend to any place within a radius of ten miles around it.]

14. [

[Added by Act No. 29 of 2008, dated 21.9.2008.]

Palamuru University

Mahaboobnagar

Mahaboobnagar and it may extend to any place with a radius of ten miles around it.]

15. [

[Added by Act No. 29 of 2008, dated 21.9.2008.]

Vikrama Simhapuri University

Sri Potti Sriramulu Nellore

Nellore and it may extend to any place with a radius of ten miles around it.]

16. [

[Added by Act No. 29 of 2008, dated 21.9.2008.]

Dr. B.R. Ambedkar University

Srikakulam

Srikakulam and it may extend to any place within a radius of ten miles around it.]

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